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Ohio River Trail Council

"Joining communities through fitness, recreation, heritage and transportation networks"

April 1, 2013

To all -

Re: ORTC Intergovernmental Agreement

With respect to the ORTC Intergovernmental Agreement, there are different methods of cooperation according to PA State Law.

Please refer to Section II. Methods of Cooperation (I have highlighted the referenced material in yellow)

First, intergovernmental cooperation is a highly flexible activity, and the ORTC agreement is classified as a "Handshake Agreement" and it is not an Act 177 Agreement.

"Handshake agreement" is the generic name for all those unwritten working arrangements between municipalities.

It also includes any written agreements not formally adopted under the provisions of the Intergovernmental Cooperation Law (Act 177 of 1996).

Only a formal agreement must be enacted by ordinance, therefore the informal agreement can be enacted by resolution.

The purpose of the ORTC Intergovernmental Agreement is to establish guidelines and a working relationship between the municipalities and the ORTC.

In addition, the agreement is required by DCNR.

Source of download -

Access www.newPA.com

Select Community

Select Local Government Information

Select Publications

Intergovernmental Cooperation Handbook 6th Ed. Feb. 2006

Sincerely,

Vincent Troia

Dr. Vincent Troia
Chief Executive Officer